

1. Advice on the contents of the exam and technical support

You will be able to raise any question as to *any patent ambiguity or error* on the face of the examination within the **first hour** of the paper being available online. In the Moodle pages for the relevant course we have added a forum called “Academic Examination Questions”. Questions can be posted there, and a response will be given by an academic member of staff. Questions cannot be asked after the first hour of release, but the earlier questions and answers (if any) will remain available on Moodle. In case you require technical assistance, please contact our virtual invigilation team at the University of Glasgow Helpdesk <https://www.gla.ac.uk/help> or on +44 (0)141 330 4800. Technical support will be available 24 hours per day. To ensure timely responses, and that all students receive the same information, you should not contact academic staff directly but instead use the Helpdesk.

2. You are about to sit an online assessment

You have a 24-hour period in which to take and complete this exam. This 24-hour period is the time during which you can arrange to take the exam. It is NOT the length of the exam.

3. Completing the exam paper

Please refer to the instructions on the exam paper cover sheet for the notional time allocation for this paper. It should take you no longer than this time to complete the paper (although it is recognised you may want to spend a little more time in planning and polishing your answer). Note that spending longer often leads to muddled answers which do not receive high grades. It is better to answer in a clear and concise fashion within the time limit given. You should pay specific attention to guidance provided on the exam paper cover sheet regarding the total word count, as you will be penalised if your submission is over the word limit. You may decide how to allocate that word limit between each question, but we would expect you to allocate appropriately. You are expected to provide only rudimentary references for any sources: that is, the very minimum to allow identification. These references count in the word limit. You are not expected to use footnotes; if you do, these also count towards your word limit.

4. Time adjustments for students with disabilities

If you have in the past been granted adjustments to your exam time e.g. through the University’s Disability Service or at School or College, allowance is made for these since you have a 24-hour period in which to complete this exam.

5. Enlarging the text

If you need to enlarge the text of a PDF document: open Adobe Acrobat; click on the VIEW tab; click on ZOOM and then ZOOM TO; select the desired magnification level.

6. Planning your time

When planning your time, you should allocate half an hour to download the exam paper and a further half hour to upload your answers to Moodle at the end of the exam. This will allow sufficient time to report any problems prior to the end of the 24-hour period.

7. Submitting your answers

Acceptable file types for submitting typed documents are: DOC/DOCX; RTF; XLS/XLSX

Acceptable file types for submitting *high resolution* images are: JPG; PNG; TIF

- **Please check that you have uploaded the CORRECT FILE, that it is readable and is the version that you want to be marked**
- **Please note that a blank or unreadable submission will be graded 'H' and incorrect submissions will count and be assessed**
- **Lastly please ensure you upload files to the correct course Moodle assignment.**

In case you are unable to upload your answers to Moodle you may email them to: law-llm-exams@glasgow.ac.uk.

Please put all your answers into one document for upload, regardless of how many questions you have answered.

Please include your student ID number and the name of the assessment in the name of your file, e.g. 0201234 Environmental Law exam, but *do not* include your own name (as all assessments are marked anonymously).

8. Declaration of Academic Integrity

The following information is very important – your degree may be at risk if you do not adhere to these instructions:

- You must not communicate with any other person about these examination questions during the period in which you can submit your answers
- You must follow any instructions on your examination paper regarding use of resources such as internet sources, books, notes or any other material that would not normally be allowed in examinations on campus.
- The work you submit must be entirely your own effort and must demonstrate your understanding rather than reproduce text from notes, slides, books, or online sources (which is plagiarism)
- You must not submit answers you have discussed with or copied from others, and you must not copy from notes you have prepared with or shared with others. If your answers are similar to those of any other candidate(s) you will both/all be suspected of collusion and referred to Student Conduct
- This declaration incorporates the University's Declaration of Originality which applies to all academic work (see below).
- Plagiarism is taken seriously by the university, therefore your work may be submitted to the plagiarism detection software used by the University

9. Declaring that the work is your own

Before viewing the exam paper, you must check the box below to agree to both this declaration and the University's Declaration of Originality.

[By ticking this box, I declare the originality of my work.]



University
of Glasgow | School
of Law

Subject Qualification: Degree of LL.M, School of Law
Session: 2020/21
Examination Title: Contemporary Issues in IP Law

Course Code: LAW5011
Date: Monday 10 May 2021
Time: 14:00

Instructions:

It should take you no longer than **TWO** hours to complete this exam.

Maximum word limit **2000 words**

Answer **TWO** questions.

CONTINUED OVERLEAF

1. 'The ability to link freely - meaning without limitations regarding the content of the linked site and without monetary fees - is fundamental to how the web operates, how it has flourished till present, and how it will continue to grow in decades to come.'
(Tim Berners-Lee, submission to the Australian Parliament)

To what extent could regulatory responses to the tension between news media organisations and digital platforms interfere with the freedom to link and share content online?

2. 'The right of revocation included in article 22 of the Directive on Copyright in the Digital Single Market, which requires rightsholders to use-it-or-lose-it, is a historic opportunity to achieve better copyright outcomes for creators.'

Discuss.

3. 'I am bound to say that I have real difficulty with these [trade mark] functions when divorced from the origin function. There is nothing in the legislation about them. Conceptually they are vague and ill-defined.' (Lord Justice Jacob, *L'Oréal SA v Bellure NV* (2010))

Discuss.

4. To what extent should non-traditional signs be protected under European trade mark law?

END OF QUESTION PAPER